

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 10, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen (arriving at 6:03 p.m.), Mr. Brown, Ms. Broyles, Mr. Cook (arriving at 6:03 p.m.), Mr. Luna, Dr. Rinne, Mr. Shanor and Ms. Williams. Absent: Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Brown moved to approve Consent Agenda items, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on October 27, 2014. Motion (per Consent Agenda) carried.

Mr. Shanor declared a conflict of interest (business interest in voucher payable to First Judicial District Attorney's Office) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Brown. Inquiry was made regarding vouchers payable to 4 Rivers Equipment (replacement lawnmowers for Parks and Recreation Department); Art Payroll.Com (temporary labor staffing for a performance at the Civic Center), and Freddy Cisneros (patio pad work for a HOME program recipient through Community Housing and Development office). Information on the department's lawnmower replacement plan was provided by Todd Feezer, Assistant Director, Parks and Recreation Department, and Mayor Kaysen explained services provided by Art Payroll and Mr. Cisneros. [During discussion Mr. Allen and Mr. Cook joined the meeting.] Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Shanor returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive public comment regarding a bar and grill liquor license application filed with the City Clerk's Office for JSKB, Inc. d/b/a Pizzeria Venti, 112 East 17th Street, Cheyenne Wyoming. There being no comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing and referred the application to Finance Committee.

Mayor Kaysen opened a public hearing to receive public comment regarding a restaurant liquor license application filed with the City Clerk's Office for Loveless Investments LLC d/b/a Camille's Gumbo House, 1617 Capitol Avenue, Cheyenne, Wyoming. There being no comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing and

referred the application to Finance Committee.

Mayor Kaysen advised the next item on the agenda (i.e. Public hearing regarding the sale of a tract of land owned by the City of Cheyenne, located at 206 West Lincolnway, Cheyenne, Wyoming, legally described as the East 22 feet of Lot 7, Block 390, Original City, to the Children's Museum of Cheyenne, Inc., a Wyoming corporation, for economic development purposes pursuant to W.S. § 15-1-112(b)(i)(D), and in exchange for consideration as provided by Section 5 of the Project Development and Administration Agreement entered into between the City and the Children's Museum of Cheyenne, Inc., dated October 6, 2014. (City Contract # 6242)) was being re-scheduled to the November 24, 2014 meeting, beginning at 6:00 p.m., to allow state statute publication requirements to be met prior to the hearing. He noted an announcement of the changed date of the public hearing was included on the current agenda as Item #26 (c).

ORDINANCE - Amending Section 6.04.020, Definitions, of Chapter 6.04, Definitions, Administration and Enforcement; Creating a new Section 6.08.190, Community Cat Initiative, of Chapter 6.08, Animal Care and Control Regulations Generally; and Amending Section 6.20.020, Animal Impoundment, of Chapter 6.20, Impoundment, of Title 6, Animals, of the Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present. (#4044)

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land situated in a portion of the Northeast Quarter of the Southeast Quarter of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as Scenic Development (located west of and adjacent to Converse Avenue, north of Dell Range Boulevard). Mr. Shanor moved to approve on second reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from County A-1 Agricultural and Rural Residential to NR-3 Neighborhood Residential – High Density for a parcel of land situated in a portion of the Northeast Quarter of the Southeast Quarter of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as Scenic Development (located west of and adjacent to Converse Avenue, north of Dell Range Boulevard). Mr. Shanor moved to approve on second reading, seconded by Ms. Williams. Comment was made relative to future consideration by City Council members involving properties planned for development brought into the City parcel by parcel and not as a "whole" area with regard to community park requirements. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from AG Agricultural to HI Heavy Industrial Lot 1 & Lot 2, Block 1 of Plains Industrial Park, 2nd Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Campstool Road and HR Ranch Road) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

ORDINANCE - Amending the Central Business District (CBD) zoning to include the design standards currently existing as the Small Scale Commercial and Mixed Use Design Standards described in Cheyenne Unified Development Code Section 6.7 -- referred to Public Services Committee (sponsor -- Dr. Rinne).

[CA] RESOLUTION - Authorizing the submission of a Business Ready Community, Community Enhancement Grant Application to the Wyoming Business Council for the Cahill Park Universally Accessible Playground Project. Motion (per Consent Agenda) carried. (#5624)

[CA] RESOLUTION - Supporting the Cheyenne Regional Airport Board in the submission of a Business Ready Community, Community Readiness Grant Application to the Wyoming Business Council for the new Airport Terminal Project. Motion (per Consent Agenda) carried. (#5625)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Scenic Development, situated in a portion of the NE¹/₄ of the SE¹/₄ of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located west of and adjacent to Converse Avenue, north of Dell Range Boulevard) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2015 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to execute an instrument waiving and relinquishing the interests of the City of Cheyenne in a right-of-way Easement granted to the City by the Transportation Commission of Wyoming, and authorizing the Mayor and the City Clerk to execute an agreement under which the Transportation Commission will convey to the City fee simple title to a portion of said right-of-way Easement subject to the condition that the right-of-way to be acquired by the City will be used for public transportation purposes and subject to the further condition that the City will assume all responsibility for said right-of-way pursuant to W.S. § 24-2-126(c)(ii) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the submission of an Our Town Grant Application to the National Endowment for the Arts with the City of Cheyenne as the lead applicant and the Children's Museum of Cheyenne, Inc. as the secondary applicant -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - An exception to the "201 Agreement" to allow a septic permit for a small wastewater treatment system for a residential property for the south 1/2 of Tracts 105 & 106, Sunnyside Addition, 4th Filing, Cheyenne, Wyoming (located at the northeast corner of the intersection of Monroe Avenue and Charles Street) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$47,748.60 pursuant to Wyo. Stat. §16-4-502 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Preliminary Plat, a replat of a portion of the NW ¹/₄ of Section 21, T.14N., R.66W., of the 6th P.M., Cheyenne, Laramie County, Wyoming (located north of Foothills Road between Point Bluff

and Mountain Road) -- referred to Public Services Committee.

[CA] Preliminary Plat, a replat of a portion of Section 35, T.14N., R.66W. of the 6th P.M., Cheyenne, Laramie County, Wyoming (located east of Pennsylvania Avenue, extending both 13th Street and Atlantic Drive) -- referred to Public Services Committee.

[CA] Grant Award Agreement between the State of Wyoming, Office of Homeland Security and the City of Cheyenne, Cheyenne Police Department, for a Grant Award from the United States Department of Homeland Security (DHS), Federal Emergency Management Agency (FEMA), Grant Programs Directorate, State Homeland Security Grant Program (SHSP) Fiscal Year 2014, for Region 7 Bomb Team, in the amount of \$20,000.00. Motion (per Consent Agenda) carried. (#6257)

[CA] Grant Award Agreement between the State of Wyoming, Office of Homeland Security and the City of Cheyenne, Cheyenne Police Department, for the Grant Award from the United States Department of Homeland Security (DHS), Federal Emergency Management Agency (FEMA), Grant Program Directorate, State Homeland Security Grant Program (SHSP) Fiscal Year 2014, for Law Enforcement and Terrorism Prevention-Oriented Activities (LETPA), in the amount of \$41,373.65. (#6258)

[CA] Grant Award Agreement between the State of Wyoming, Office of Homeland Security and the City of Cheyenne, Fire and Rescue Department, for the Grant Award from the United States Department of Homeland Security (DHS), Federal Emergency Management Agency (FEMA), Grant Program Directorate, State Homeland Security Grant Program (SHSP) Fiscal Year 2014, for the Region 7 State Regional Emergency Response Team, in the amount of \$100,000.00. Motion (per Consent Agenda) carried. (#6259)

[CA] Professional Services Agreement between the City of Cheyenne and Assured Equity Management Corporation for health insurance consulting services (Contingency Funds and Unrestricted Reserves) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County, Wyoming, for reimbursement of dual-commissioned Juvenile Diversion Officer's salary (revenue to City) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6131 between the City of Cheyenne, Public Works Department, and Monument Builders, Inc., of Cheyenne, Wyoming, for the Household Hazardous Waste Facility, Sitework, and Underground Storage Tank Replacement Project (State & Local Grants). Motion (per Consent Agenda) carried.

[CA] Contract Modification No. 1 to Contract No. 5975 between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, Wyoming, for the East Pershing Boulevard/19th Street/Converse Avenue Intersection Improvements Project to partially release retainage (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried.

[CA] Consideration of Bid #R-15-15 for the sale of surplus property described as Lot 1, 2 and 3, Block 660, Re-plat of a part of South Cheyenne, City of Cheyenne, Laramie County, Wyoming (located at 522 Van Lennen Avenue). Motion (per Consent Agenda) carried (accepted bid from Tara Curry and Scott Parsons in the amount of \$51,731.51 plus \$2,500.00 reimbursement to the City for

the property appraisal cost, for a total amount of \$54,231.51).

[CA] Consideration of Bid #R-16-15 for the sale of surplus property described as All of Lot 8, Block 348, Original City of Cheyenne, Laramie County, Wyoming (located at 1700/1710 Snyder Avenue). Motion (per Consent Agenda) carried (accepted bid from Tara Curry and Scott Parsons in the amount of \$155,343.22 plus \$2,500.00 reimbursement to the City for the property appraisal cost, for a total amount of \$157,845.22).

[CA] Consideration of Bid #R-11-15 for furnishing one new 2014-2015 small dozer (CAT D5K5-2 LGP or equal) for the City of Cheyenne, Landfill Division (Solid Waste Management). Motion (per Consent Agenda) carried (accepted bid from Wyoming Machinery, Cheyenne, in an amount not to exceed \$69,221.00).

[CA] Consideration of Bid #M-6-15 for crushing concrete at the Happy Jack Landfill -- referred to Finance Committee.

[CA] Consideration of Bid #R-14-15 for furnishing and installing miscellaneous police car equipment for the Police Department (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-8-15 for furnishing one to three medium/heavy duty, body on chassis, low floor buses with wheel chair accessibility for the City of Cheyenne, Transit Division (Federal Grant, local match) -- referred to Finance Committee.

Appointments of Richard C. Loveless Jr. and Wallace Erickson, to the Cheyenne Downtown Development Authority Board (DDA). Mr. Shanor moved to approve, seconded by Dr. Rinne. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the January 21, 2015 Wyoming Association of Municipalities Business Meeting -- referred to Finance Committee.

Announcement was made of the Appointments of Landon Brown, Philip J. Griggs and Kenneth C. Uhrich, to the City Planning Commission, and Stefanie Boster, Michael Hofmeister and Kevin L. Schaiger to the Board of Adjustments, to be confirmed November 24, 2014.

Announcement was made of a Public Hearing to be held November 24, 2014, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming to receive public comments regarding the sale of a tract of land owned by the City of Cheyenne, located at 206 West Lincolnway, Cheyenne, Wyoming, legally described as the East 22 feet of Lot 7, Block 390, Original City, to the Children's Museum of Cheyenne, Inc., a Wyoming corporation, for economic development purposes pursuant to W.S. § 15-1-112(b)(i)(D), and in exchange for consideration as provided by Section 5 of the Project Development and Administration Agreement entered into between the City and the Children's Museum of Cheyenne, Inc., dated October 6, 2014. (City Contract # 6242).

Announcement was made of a Public Hearing to be held November 24, 2014, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land situated in a portion of the NW 1/4 of Section 21, T.14N., R.66W., 6th P.M., Laramie County, Wyoming, to be known as The Bluffs, 10th Filing, Annexation (located between Converse Avenue and Crestridge Drive, north of Foothills Road).

Under other business:

Major Dorr commented on the recent programs that were provided free to the public by the Laramie County Community College's Music Department, noting low spectator attendance, and encouraged people to attend.

Ms. Williams stated that at the October 27, 2014 City Council meeting the motion to approve an ordinance amending portions of City Code Title 12 regarding Obstructions on Streets failed on second reading, and, having voted on the prevailing side and pursuant to Chapter 2.04 of City Code, moved to reconsider the vote pursuant to potential amendments that may be proposed to the ordinance, seconded by Ms. Broyles. Upon request by Mayor Kaysen, Carol Intlekofer, City Clerk, read the entitlement of the ordinance proposed for reconsideration into the record as follows: "Ordinance - 2nd Reading - Amending Section 12.04.010, Obstructions on Streets, and Section 12.04.080, Construction and Repair - Permits Required - Fees - Exception, of Chapter 12.04, Streets, Sidewalks and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming." Mr. Shanor raised a point of order regarding who was eligible to second a motion to reconsider. Mayor Kaysen advised any City Council member can second the motion (per City Code). Upon query by Mayor Kaysen, Ms. Williams advised during discussion at the last City Council meeting, suggestions for potential amendments were brought up and purpose of the motion to reconsider is to enable further discussion involving possible changes to the ordinance. Motion to reconsider carried. Voting "yes" -- Mr. Brown, Ms. Broyles, Dr. Rinne, Ms. Williams and Mayor Kaysen. Voting "no" -- Mr. Allen, Mr. Cook, Mr. Luna and Mr. Shanor. Mayor Kaysen stated that as the motion to reconsider had carried, the main motion to approve the ordinance on second reading, as amended by substitute at the October 27th City Council meeting, was now back before the governing body. Ms. Williams moved to postpone for two weeks (to November 24, 2014), seconded by Ms. Broyles. Following comments, motion to postpone carried. Voting "yes" -- all members of the governing body present. Mayor Kaysen announced that due to postponement, the item will be reviewed at the next Finance Committee meeting, which will be held Monday, November 17, 2014 at 11:00 a.m., Room 122, of the Municipal Building.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:25 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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